

Ian Woodland

From: Ian Morrison <ianmorrison2014@yahoo.co.uk>
Sent: 17 July 2014 22:37
To: C04 Jonathan Pope; C08 Nigel Hallam; C11 Ian Bickers; C03 Ian Woodland
Subject: CMC Meeting re Registration of Communal Land etc.

Flag Status: Flagged

Hi Jonathan,

I have read your note of the 10th July a number of times with increasing concern , hence I thought prior to the meeting you may wish to hear my perspective on the various outstanding issues.

I very much endorse your views as expressed in your response to John Jeffers that hindsight is a wonderful thing but we are where we are and must collectively work to rectify these matters. In addition I do not consider having a moratorium on payments to third parties is a positive way forward as we are receiving services to which these payments relate.

In the circumstances I have highlighted my concerns and possible solutions below. I have also numbered the paragraphs to correspond with your note.

1) This is a real "b.....s muddle" and indeed the McCann's (No. 9) should have title to a *flying freehold*. Although this can be resolved, if the McCann's have a mortgage on the property then the Mortgage Co. may have to be involved. In addition some lenders for one reason or another sometimes show a reluctance to lend against flying freeholds. Why can't the McCann's enter into some kind of a Deed of Covenant (Right of Way) with the other owners in the Courtyard, in return for a contribution towards the upkeep of the land below the archway. In reality the latter would happen anyway! As for Dean not wishing to incur costs, are we not "all in this together."

2) I consider who owns the parcel of land edged in brown which forms part of the roadway into the Farmhouse car park to be of great concern to me. If it is Liscombe Park Ltd all well and good, providing that they acknowledge their ownership in writing and confirm that this forms part of the Right of Way over the Access Road there should be no problem here. However if the parcel of land is not owned by Liscombe Park Ltd who does own it, for this third party has in reality a ransom strip which in effect stops vehicular access to the Farmhouse car park and will have an adverse affect on the saleability of No.s 10,11,12, 13 and 14 and their value! If we cannot discover who owns it, can we insure against any future claim/problems etc?

3) As you say these items should be relatively easy to resolve by revision of the Transfer Plan.

4) It is my understanding (as detailed on the plans attached to my lease) that the Farmhouse Car Park forms part of the Communal Land, similar to the car park to the front of the Courtyard and does not form part of the Freehold.

5) With regard to the blue hatched areas for Eileen (No 1) and Malcolm and Julia (No10), these are so insignificant why don't we change the fence line to match the Land Registry Illustrative Plan as there would be no adverse affect to the value of the properties.

In respect of Nigel and Pauline (No.8) and Ian and Bruno (No.3) are these areas edged in blue not the original designated positions for the bin stores? Also the small slither of land to the rear of the garden of No.8, could we again not consider moving the fence posts to reflect the Illustrated Plan. These simple changes will save us all costs which clearly will be incurred in sorting out the more major issues affecting Bart and Mike (No. 7) and Alan (No.6).

6) The roadway issue appears to solely affect John (No.5) and does not impact upon CMC other than up-keep etc. Clearly the co-operation/involvement of Thameside will be required to rectify this issue.

7) With regard to the cupboard off the archway, how is this reflected in Eileen's title deeds as she is a relatively "new" owner?

8) With regard to the areas in green, is the parcel of land adjacent to the garden of No.5 to be included in communal land (to be edged in red)?

Although in general I would wish to follow Option 2 which basically leaves it to CMC to sort out the mess, I do consider the issue of the brown hatched roadway to be of significant importance/concern and would wish this to be clarified with Liscombe Park Ltd prior to the completion of the transfer of the communal land.

I look forward to what I hope will be a constructive meeting as trying to apportion blame for the current situation will not achieve anything for we are where we are.

Regards.

Ian (12)

PS I have no problem if Ian wants to put this email in the Residents Library.